

25CHCV02904 25CHCV02904

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Dept. F49

Date: 7/10/26

Case Name: Donald M. Stone vs. Andranik Ando Hacopian

AKA Ando Hacopian; Hilltop Assets, LLC; Griffin Andrew Ruderman; The Maimon Group, Inc.; and Does 1-6

Case No. 25CHCV02904

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 10, 2026

MOTION TO SET

ASIDE DEFAULT

Los Angeles Superior

Court Case No. 25CHCV02904

Motion filed: 2/10/26

MOVING PARTY: Defendant Griffin Andrew Ruderman

RESPONDING PARTY: Plaintiff Donald M. Stone

NOTICE: OK

RELIEF REQUESTED: An order from this Court setting aside the clerk's entry of default against Defendant Griffin Andrew Ruderman.

TENTATIVE RULING: The motion is GRANTED.

BACKGROUND

This action arises from the alleged overvaluation of property commonly known as 11709 Camino Escondido Rd, Carmel Valley, Ca 93924. On August 15, 2025, Plaintiff Donald M. Stone ("Plaintiff") filed the Complaint against Defendants Andranik Ando Hacopian AKA Ando Hacopian, Hilltop Assets, LLC, Griffin Andrew Ruderman ("Ruderman"), The Maimon Group, Inc., and Does 1-6, alleging the following causes of action: (1) breach of contract, and (2) fraud.

On October 30, 2025, default was entered against Ruderman.

On February 10, 2026, Ruderman filed the instant Motion to Set Aside Default (the "Motion").

On June 1, 2026, Plaintiff filed an Opposition.

On July 2, 2026, Ruderman filed a Reply.

ANALYSIS

Pursuant to Code of Civil Procedure section 473, subdivision (d), "[t]he court may, on motion of either party after notice to the other party, set aside any void judgment or order."

A.

Request for Judicial Notice

The Court may take judicial notice of “[r]ecords of ... any court of this state.” (Evid. Code, § 452, subd. (d).) Upon taking notice of court records, the court accepts as true only that (1) they were filed, and (2) the assertions therein were made; the court does not take notice of the truth of their contents. (See *Joslin v. H.A.S. Insurance Brokerage* (1986) 184 Cal.App.3d 369, 374-375; see also *Day v. Sharp* (1975) 50 Cal.App.3d 904, 916.)

Ruderman requests that the Court take notice of the Proof of Service filed on September 8, 2025 and purporting to effectuate substituted service on Ruderman. (Request for Judicial Notice (“RJN”), Exh. 1.)

The Proof of Service is a record of this Court and is a proper subject of judicial notice. The Court accordingly GRANTS the request and the Court takes notice of the Proof of Service insofar as it was filed and assertions were made therein.

B.

Grounds for Set-Aside

Ruderman seeks to set aside the clerk’s default entered on October 10, 2025 on the ground that service was improper, rendering the entry of default void. (Mot., at pp. 5-6.) Ruderman claims that service is void for two reasons: (1) the purported service on Ruderman’s business partner, Merse Kollo (“Kollo”), was ineffective because Kollo rejected service and did not have authority to accept, (2) Plaintiff did not mail the Summons and Complaint to him at his office or residence, and (3) Plaintiff does not establish reasonable diligence in attempting personal service.

Plaintiff’s Proof of Service indicates that Ruderman was served with the Summons and Complaint by Jessie Mayate (“Mayate”) via substituted service at Ruderman’s office by leaving the documents with Kollo. (RJN, Exh. 1, at p. 1.)

(1)

Kollo’s

Rejection of Service

The facts essential to determination of the Motion are not in dispute. Both Kollo and Mayate attest that, on or around August 27, 2025, Mayate and Plaintiff entered Ruderman's office, where they handed papers to Kollo. (Kollo Decl., ¶¶ 4-5; Mayate Decl., at p. 5:15-17.) Kollo indicated that he was not Ruderman and could not accept service on his behalf, then escorted Plaintiff and Mayate to the elevator and left the papers on the elevator floor. (Kollo Decl., ¶ 6; Mayate Decl., at p. 5:18-20.) Plaintiff then threw the papers outside the elevator and into the office, and the exchange ultimately ended with Kollo placing the papers back inside the elevator with Plaintiff and Mayate. (Kollo Decl., ¶¶ 6-7; Mayate Decl., at p. 5:20-22.)

Plaintiff contends that service was proper under Code of Civil Procedure section 415.20, subdivision (a) because the papers were handed to Kollo, who was "apparently in charge" of the office shared by Ruderman, and subsequently were mailed to Ruderman at the same address. (Opp'n, at pp. 2-3.)

Code of Civil Procedure section 415.20 permits service to be made by "leaving a copy of the summons and complaint during usual office hours in the person's office ... with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (Code Civ. Proc., § 415.20, subd. (a).)

Plaintiff is correct that section 415.20, subdivision (a) requires only that the person served appear to be in charge of the defendant's office and not that the person have actual authority to accept service. However, by all accounts, Plaintiff and Mayate did not manage to "leave" the Summons and Complaint at Ruderman's office, as the exchange between them and Ruderman resulted in Ruderman handing back the papers. (See Code Civ. Proc., § 415.20, subd. (a).) The requirements of section 415.20 are accordingly not met.

On this basis, the Court finds that Plaintiff did not complete service on Ruderman, rendering the default against him void.

(2)

Lack of Authority

to Accept Service and Lack of Due Diligence

Ruderman's other arguments are unavailing. As noted above, Kollo's authority to accept service on behalf of Ruderman is immaterial, as Code of Civil Procedure section 415.20, subdivision (a) imposes no such requirement. Lack of authority to accept service is accordingly insufficient ground to set aside the default.

Moreover, although Ruderman argues that Plaintiff failed to exercise reasonable diligence, the Proof of Service indicates that Mayate attempted personal service on three occasions at Ruderman's office and personal residence prior to attempting to leave the papers with Kollo. (RJN, Exh. 1.) Ruderman offers no authority suggesting that a defendant's office is an improper place for attempting personal service. Ruderman thus fails to establish that Plaintiff's showing of due diligence is deficient.

Nevertheless, because the Court has found that substituted service is incomplete, the Court GRANTS the Motion.

CONCLUSION

The Court GRANTS Defendant Griffin Andrew Ruderman's Motion to Set Aside Default.

Moving party to give notice.